

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #13	CCRB Case #: 202400246	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 12/16/2023 7:00 PM	Location of Incident: § 87(2)(b) in Brooklyn	18 Mo. SOL 6/16/2025	Precinct: 73
Date/Time CV Reported Mon, 01/08/2024 12:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 01/08/2024 12:02 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Alex Wong	28049	965622	073 PCT
2. Muhammad Saleem		973750	

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Javier Negron	14603	956970	073 PCT
2. PO Jonathan Angulo	03614	950009	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Alex Wong	Abuse: Police Officer Alex Wong forcibly removed § 87(2)(b) to the hospital.	A . Within NYPD Guidelines
B . PO Alex Wong	Force: Police Officer Alex Wong used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . Muhammad Saleem	Force: Police Officer Muhammad Saleem used physical force against § 87(2)(b)	C . Within NYPD Guidelines

Case Summary

On January 8, 2023, § 87(2)(b) called the CCRB and filed this complaint (**BR 01**). This case was initially assigned to Investigator Riana Medford and was reassigned to Supervising Investigator Ethan Waterman on June 17, 2024.

On December 16, 2023, at approximately 7:00 p.m., Police Officers Muhammad Saleem and Alex Wong of the 73rd Precinct responded to § 87(2)(b) in Brooklyn for a 911 call regarding § 87(2)(b) wielding a knife. PO Wong determined that § 87(2)(b) needed to go the hospital, and he and PO Saleem pulled § 87(2)(b) toward the exit of the building (**Allegation A, Abuse of Authority: Forcible Removal to Hospital, Within NYPD Guidelines; Allegations B and C, Force: Physical Force, Within NYPD Guidelines**). § 87(2)(b) was removed to § 87(2)(b).

No arrests or summonses resulted from this incident.

The investigation received body-worn camera (BWC) footage from all responding officers (**BR 02**). The relevant aspects of this footage shall be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Alex Wong forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Force: Police Officer Alex Wong used physical force against § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Muhammad Saleem used physical force against § 87(2)(b)

In her CCRB interview (**BR 03**), § 87(2)(b) alleged that when she went to her shelter on an unknown date in late December 2023, a staff member refused to let her into her room. Soon after, PO Wong and another officer arrived at the shelter. PO Wong forcibly grabbed § 87(2)(b) by the arm, causing bruises, whereas the other officer gently grabbed § 87(2)(b)'s arm, causing no injuries. PO Wong and the other officer removed § 87(2)(b) to a hospital.

Per EVENT § 87(2)(b) (**BR 04**), on December 16, 2023, at approximately 6:56 p.m., a staffer from § 87(2)(b) called 911 and reported that § 87(2)(b) was refusing to leave the shelter and had a knife.

Per his BWC activation (**BR 05**), PO Wong and the other officers arrived at the location at 7:02 p.m. At runtime 01:14, a staffer informs PO Wong that § 87(2)(b) had been transferred to another shelter at § 87(2)(b) in Brooklyn as of December 13, 2024, that she was refusing to leave, that her bags were packed, and that staff had taken away the butter knife that § 87(2)(b) had previously wielded. At runtime 02:10, PO Wong approaches § 87(2)(b) and informs her that she has to leave the shelter. For several minutes, § 87(2)(b) refuses to leave while PO Wong speaks to her through an interpreter on his phone. At 05:00, a staff member tells PO Wong that § 87(2)(b) has historically failed to follow shelter rules, is verbally aggressive, and has struck people in the past.

At 08:07, PO Wong grabs § 87(2)(b)'s arm and informs her that it is time to leave. In response, § 87(2)(b) yells and sinks to the floor under her own power. PO Wong tells § 87(2)(b) that they will take her to the hospital, and both he and PO Saleem lift her by her arms. At 08:23, § 87(2)(b) screams, and the officers set her on the ground. At 08:38, PO Saleem and PO Wong reposition themselves and pull § 87(2)(b) along by her arms while she keeps her body limp and cries out. The officers set her down again at 09:20.

At 34:25, EMTs arrive. PO Wong tells the EMTs, “She speaks only Mandarin. I had her interpreter earlier... she got so irate after [the interpreter] told her she had to leave. The interpreter explained everything to her, and she got even more aggressive. She dropped her weight and didn’t want to go anywhere.” Ultimately, at 01:03:10, PO Wong and PO Saleem lift § 87(2)(b) into a rolling chair and restrain her to the chair. EMTs then push § 87(2)(b) in the rolling chair and to the ambulance.

In his CCRB interview (**BR 06**), PO Wong stated that he believed § 87(2)(b) to be a danger to herself because she was refusing to leave the location and was a danger to others because she had previously pulled out a butter knife on staffers prior to the officers’ arrival. PO Wong also learned from shelter staff that § 87(2)(b) had a history of aggression with the staff (thus leading to her shelter transfer), and this too factored into his consideration that § 87(2)(b) was a danger to others. PO Wong thus decided § 87(2)(b) needed to go to the hospital. PO Wong also noted that § 87(2)(b)’s advanced age factored into his desire for her to get a psychological evaluation rather than be arrested for menacing. When § 87(2)(b) refused to go voluntarily, PO Wong and PO Saleem attempted to guide her out of the location, but she still refused to leave by pulling her body away to keep officers from escorting her. PO Wong tried to grab § 87(2)(b)’s arm to walk her out of the location. § 87(2)(b) dropped her body weight. PO Wong and PO Saleem still tried to escort § 87(2)(b) out of the location by lifting her upright and walking her forward. PO Wong disputed the characterization that he “dragged” § 87(2)(b) in the hallway. PO Wong and PO Saleem held onto § 87(2)(b) by her armpits and tried to hold her upright, but § 87(2)(b) dropped her weight and kept legs limp. PO Wong noted that the area where § 87(2)(b) had dropped her weight was a tight hallway and that residents were nearby. PO Wong believed he needed to move § 87(2)(b) to a safer location and thus pulled § 87(2)(b) to a different spot.

Patrol Guide Procedure 221-13 (BR 07) defines an emotionally disturbed person as “a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.” When an officer “reasonably believes that a person who is apparently mentally ill and emotionally disturbed, [the person] must be taken into protective custody because the person is conducting himself in a manner likely to result in serious injury to himself or others.”

Per Patrol Guide Procedure 221-01 (BR 08), in all circumstances, any application or use of force must be reasonable under the circumstances. Officers will use only the reasonable force necessary to gain control or custody of a subject, and de-escalation should be prioritized whenever possible. Officers must consider the following factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject’s violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)
[REDACTED]

It is therefore recommended that **Allegation A** be closed as **within NYPD guidelines**.

§ 87(2)(g)

It is therefore recommended that Allegations B and C be closed as within NYPD guidelines.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in nine allegations (BR 09).
 - § 87(2)(b)
- PO Wong has been a member-of-service for six years and has been a subject in a single CCRB complaint and allegation, which was not substantiated. § 87(2)(g)
- PO Saleem has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming bruising on her left arm and seeking \$30,000 as redress (BR 10). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 13

Investigator:	<u>Ethan C. Waterman</u>	<u>SI Ethan Waterman</u>	<u>06/21/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>06/21/2024</u>
	Signature	Print Title & Name	Date

Reviewer:

Signature

Print Title & Name

Date